Ministry of Housing, Communities & Local Government

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Council Leaders
East Sussex and Brighton and Hove
By email

29 October 2026

Dear Leaders,

I am writing to set out the outcome of the Government's review of the framework for the local government reorganisation programme and, separately, my current provisional view on the proposals for local government reorganisation in East Sussex and Brighton and Hove. I am grateful for all the work that went into developing proposals and preparing for implementation, and for the patience you have shown throughout this process. I recognise that the review period has not been easy, and do not take for granted your continued commitment to the long-term work needed to fix the foundations and put local government in the best possible position.

Outcome of the programme review

Following the announcement to Parliament on 7 September 2026, the Secretary of State and I have worked with officials to interrogate the key pillars and framework underpinning the Local Government Reorganisation programme, including asking whether the existing unweighted criteria ('the criteria') set in February 2025 and the programme's objectives continue to support the policy priorities of the new Government.

We have concluded that the basis of the programme is robust and that the existing criteria against which proposals have been submitted were correct on their own terms and continue to support the Government's policy agenda. Following this initial phase of the review, we can therefore confirm that the Government remains committed to delivering local government reorganisation and that we will continue to move forward with the programme based on the existing criteria, which we hope gives confidence as the programme progresses.

Minded to decision for East Sussex and Brighton and Hove

The Secretary of State has recused herself from decision making in respect of local government reorganisation in the East Sussex and Brighton and Hove invitation area.

Separately from the programme-level review, in my capacity as Minister for Local Government, Devolution and Regional Growth, I am currently minded to implement the **proposal submitted by Eastbourne Borough Council, East Sussex County Council, Hastings Borough Council, Lewes District Council and Rother District Council with modifications to the proposed boundary to expand Brighton and Hove by four wards.**

That proposal, together with the modifications that I am currently minded to make, would establish the following new councils, **with elections in May 2028, ahead of vesting in April 2029**:

Proposed new council	**Existing local government areas forming proposed new council** (excluding county council)	**Current population**
East Sussex Council	Eastbourne Borough Council Hastings Borough Council Lewes District Council minus four wards (East Saltdean and Telscombe Cliffs, Peacehaven North, Peacehaven East and Peacehaven West) Rother District Council Wealden District Council	537,000
Brighton and Hove Council	Brighton and Hove City Council plus four wards from Lewes District Council (East Saltdean and Telscombe Cliffs, Peacehaven North, Peacehaven East and Peacehaven West)	308,000

Consideration of the proposals

This letter sets out my consideration of the performance of each proposal against the criteria and the reasons why I am currently minded to select the preferred proposal. Where relevant, the letter also sets out areas where further information is sought to assist with reaching a final decision. Further detail of the minded to process is set out at the end of this letter.

I have considered the proposals and options received from councils in East Sussex and Brighton and Hove:

- **Two unitary proposal submitted by East Sussex County Council, Eastbourne Borough Council, Hastings Borough Council, Lewes District Council, Rother District Council (‘original two unitary’)**
- **Five unitary proposal on a pan Sussex basis submitted by Brighton and Hove City Council (‘five unitary’)**
- **Two unitary modification as requested by Brighton and Hove (‘modified two unitary’)** to reduce East Sussex Council by four wards and one parish with the corresponding increase to Brighton and Hove.

I have assessed each submitted proposal and option against the six criteria and considered their strengths and weaknesses before reaching this minded to decision.

The original two unitary proposal and modified two unitary option meet all six criteria shared on 5 February 2025 and offer potential benefits for establishing single tier local government. The five unitary proposal does not meet criteria 2, 3 and 4. Principally this is because of the cost implications of implementing the proposal and concerns regarding the financial sustainability of the proposed new councils (criterion 2), potential disruption to public services due to the scale of change and subsequent risk to service users (criterion 3), and that the proposal was developed in isolation from other councils in the areas concerned (criterion 4). Our decision therefore turns principally on the comparative position of the original and modified two unitary options and on whether I believe the boundary change has the strong public services and financial sustainability related justification set out in the published guidance.

Criterion 1: A proposal should seek to achieve for the whole of the area concerned the establishment of a single tier of local government

The modified two unitary option meets criterion 1. It would establish a single tier of local government across the whole invitation area and create councils with populations of approximately 537,000 for East

Sussex and 308,000 for an expanded Brighton and Hove. The four wards (East Saltdean and Telscombe Cliffs, Peacehaven North, Peacehaven East and Peacehaven West) have identified employment, travel to work, transport and service use connections with Brighton and Hove and the modification builds on this. While requested by Brighton and Hove, I have decided to omit Falmer Parish, with a population of around 300, from the modification. This is due to its predominantly rural identity, to go some way to mitigating the complexities of implementation and follows consideration of consultation responses.

I am satisfied that the modification provides for a sensible economic area and better represents a functional urban area and geography. Brighton and Hove is currently constrained by the challenges of an under-bounded geography. The modification would bring responsibility for housing, regeneration, transport, infrastructure and local services together across communities with established functional links. I recognise that the boundary changes outlined for Brighton and Hove would provide only a modest expansion and could mean that Brighton and Hove would remain relatively under-bounded; that the coast and South Downs National Park constrain development; and that the evidence does not establish that the change would resolve the city's housing constraints in full. But I consider that the boundary changes will result in positive impacts by seeking to expand Brighton and Hove, allowing the council to consider, plan and implement infrastructure requirements along the A259 corridor, and its connected coastal communities for example. I am confident that the residual East Sussex area will still be able to pursue the significant economic growth opportunities available in the area, such as Newhaven's industrial, logistics and maritime activity.

I have concluded that the modified geography provides a better overall alignment for the transferred coastal communities and a broader basis for coordinated planning around Brighton and Hove, and that this smaller expansion would be a positive move towards establishing a stronger, more coherent Brighton and Hove Council. I consider those factors to weigh in favour of the modified option over the original two unitary proposal. While the modification is relatively modest in scale, I am satisfied that it nevertheless offers the benefits identified above.

Turning to the other proposals, the original two unitary proposal would establish a single East Sussex authority on the existing county footprint, preserving this East Sussex geography, avoiding dividing Lewes District and providing a coherent basis for strategic planning across East Sussex. But it does not seek to address Brighton and Hove's boundary, with Brighton and Hove remaining on its current footprint, which I regard as restrictive for the reasons outlined above.

The five unitary proposal would create five authorities on a pan-Sussex basis (going beyond the East Sussex and Brighton and Hove invitation area). The scale of boundary change, including a proposed authority that would cross current East and West Sussex county boundaries, would also make the proposed geography more complex to implement.

Criterion 2: Unitary local government must be the right size to achieve efficiencies, improve capacity and withstand financial shocks

The modified two unitary option meets criterion 2 and creates two councils with populations of approximately 537,000 for East Sussex and 308,000 for an expanded Brighton and Hove, transferring four wards (East Saltdean and Telscombe Cliffs, Peacehaven North, Peacehaven East and Peacehaven West) from Lewes District.

I acknowledge that the population of the expanded Brighton and Hove would be below the 500,000 guiding principle and will set out why I believe the case is made for it. The guiding principle of 500,000 is not a fixed threshold, and I made clear that councils across the programme could develop proposals for authorities with populations either above or below that figure in statements to Parliament and in discussions with the sector over many months. In this case, flexibility is justified by the different

characteristics and needs of the two areas and by the benefits of councils with a clearer local focus on issues impacting these areas; such as accessible services and infrastructure in rural areas, housing affordability and job opportunities in urban areas and better access to health and social care services and coastal defence in coastal communities. It is also relevant that many single-tier councils, with a median population of 275,000, have operated effectively across the same key services for decades. The modification brings the expanded Brighton and Hove closer to the guiding principle of a population of 500,000; each council would have a strong population base to support long-term sustainability and growth, while responding more closely to its area's needs.

I have distinguished projected efficiencies from longer term financial sustainability. The original two unitary option has the more complete efficiency evidence, including forecast efficiencies. It is reasonable to expect that the two-unitary modified option could deliver efficiencies of a similar scale, even if early implementation costs are higher.

The sustainability assessment is more finely balanced. Analysis conducted by MHCLG officials found little difference between the original and modified two unitary options, with both expected to perform similarly or better than their existing council arrangements. However, I have considered that the modification would increase Brighton and Hove's population and broaden the tax base, while acknowledging that it would correspondingly reduce that of East Sussex. Given the modest boundary change proposed, I consider that the residual East Sussex remains of sufficient scale to absorb the impacts of the boundary change and the departmental assessment is that it would continue to potentially perform similarly or better than the existing structure.

I recognise that the modification will not resolve Brighton and Hove's financial challenges in full and that the sustainability assessment for the modified option shows only a likely marginal gain. However, I judge that the modified option has better potential to further improve the long-term sustainability of the expanded Brighton and Hove authority for two key reasons.

First, as set out under criterion 1, I consider that this has the potential to better support Brighton's economic and housing growth, with the potential for housing, planning, transport and investment along the coastal corridor to be coordinated within one authority. I consider this provides a better platform and opportunity to support investment and growth in Brighton and Hove; more economic and housing growth has the potential to provide positive knock-on impacts for the long-term tax base and sustainability prospects of the area. Second, I consider that the modified option offers the potential to improve public service coherence, access and accountability across communities with identified connections to Brighton and Hove.

It is also important to say that while reorganisation can contribute to local government sustainability, it is only part of the answer alongside work across government and the sector on public sector reform and high-cost demand-led services in adult social care, children's services, SEND and temporary accommodation, for example. Much of that work is underway and supported by new investment alongside a focus on early intervention and prevention. Critical to success will be strong leadership, sufficient capacity and capability, and clear prioritisation of resources to support the transition and ensure high performance of these services going forward. I am confident that the support offer put in place by government can develop a credible pathway to securing new and effective leadership candidates where required, across statutory services such as adult social care, children's services and public health within the new authorities.

Taking these together, and alongside the marginal improvement in the sustainability assessment, I judge that the modified option provides a better platform for the councils across the area to be more sustainable in the long term.

Turning to the other proposals, the original two unitary proposal would retain the existing East Sussex county footprint and avoid disaggregating countywide services, which by its nature would involve lower transition costs. As the original two unitary proposal acknowledges, local government reorganisation alone will not resolve the financial pressures that councils in East Sussex face, nor does it address the financial pressures affecting Brighton and Hove.

The five unitary proposal does not meet the criterion. It would create five councils with reduced capacity to absorb financial shocks. Overall, the proposal does not represent a clear improvement on current structures in terms of our sustainability assessment, while implementation costs and disaggregation risks are substantially greater.

Criterion 3: Unitary structures must prioritise the delivery of high quality and sustainable public services to citizens

The modified two unitary option meets criterion 3. It would bring housing, planning, transport, public realm and local services for the transferred communities within one authority. These responsibilities would align more closely with how residents travel, use services and access Brighton and Hove.

I judge that the options for two authorities will enable effective, high-quality services for local residents and that the modification will help align service provision and planning in a way that better reflects the urban extent of Brighton and Hove along the coastal corridor. This would enable an expanded Brighton and Hove council to better reflect its local communities and therefore be better able to design and target public services in line with those needs.

Alongside the support we are providing to manage the division of services, Brighton and Hove also set out local measures to mitigate the challenges to services during transition. These include preserving existing service arrangements until transfers are safe, phased implementation and dual running where required, shared data between authorities where possible, transition arrangements established within the Structural Changes Order, TUPE transfer of the workforce and safeguarding protocols.

With these measures and national support, and given the modest nature of the boundary changes, I judge that the public service benefits of the modification outweigh the risks outlined in the boundary change section below. I have considered representations from local service providers, including the police and health bodies, and from other government departments. I acknowledge that the transition creates a challenge to service provision and will require detailed arrangements to manage it. I have nevertheless concluded that the potential to plan and deliver public services together across more connected communities, alongside the planning and financial sustainability factors, is sufficient to justify accepting the additional transition risk that comes with the modest changes. I am of the view that not including Falmer parish within an expanded Brighton and Hove will go some way to mitigating the complexities of implementing the modification.

The department has worked with other government departments to develop a robust support offer comprising several elements. Funding will enable each area undergoing transition to bring in additional capacity to support a safe process. National work to develop future directors of health and social care services will help ensure that, in the medium term, there are enough suitably qualified leaders to deliver effective and safe services. Although the councils will be statutorily constituted as separate bodies, they do not need to operate as completely separate organisations from day one. The department will support authorities seeking a longer transition period to manage this effectively.

Taken together, the funding and wider support offer gives me confidence that the identified risks to public services during transition and the division of services can be managed if implementation is handled well. This is the first time government has provided funding support in this way. The recent experience of disaggregating statutory services following local government reorganisation in Cumbria

provides further reassurance: well-planned and supported disaggregation can strengthen local accountability and improve services, and children's services continued to improve following reorganisation. I consider that close working between government and local councils throughout transition can also help manage the concerns about the effect on Brighton and Hove's adult social care improvement.

Turning to the other proposals, I recognise that a judgement against an individual criterion can be finely balanced, and the original two unitary proposal carries less transition risk for public services. As it uses existing councils as building blocks it would avoid the complexities of disaggregating services at ward level and preserve established upper-tier service areas and partnerships within the area. East Sussex adult social care, children's services, SEND, public health, safeguarding and other countywide functions would remain within one authority. Brighton and Hove would continue to deliver its existing unitary services. However, it does not seek to connect communities across the coastal corridor in the same way as the modified option.

The five unitary proposal does not meet the criterion. As the proposal was across local government reorganisation invitation area boundaries, this would require particularly complex disaggregation and aggregation of services provided by existing upper tier authorities. Due to these specific complexities, the proposal is anticipated to involve substantial implementation costs and may present risks to service continuity. As departmental analysis has assessed the proposed five new authorities to be potentially less financially resilient than the existing structures, there is a resulting risk that the new authorities may not have the ability to deliver high-quality and sustainable public services to residents within the areas concerned.

Criterion 4: Proposals should show how councils in the area have sought to work together in coming to a view that meets local needs and is informed by local views

The modified two unitary option meets criterion 4. I have considered the views expressed in the consultation responses and appreciate the strength of concern regarding local identity. I have carefully considered those views as part of making a rounded judgement, as evidenced by my decision to omit Falmer parish from an expanded Brighton and Hove due its rural identity, to reduce the complexity associated with boundary change and having considered the representations made. As set out under criterion 6, credible neighbourhood governance and continuing engagement with residents by the new expanded Brighton and Hove council will be essential to make sure that the new council is set up for success and remains sensitive to the needs and views of those local communities.

Turning to the other proposals, the original two unitary proposal was developed by East Sussex County Council, Eastbourne Borough Council, Hastings Borough Council, Lewes District Council and Rother District Council. It meets criterion 4 and demonstrates strong collaboration among the East Sussex councils and attracted comparatively strong support during both consultations. Wealden District Council did not submit or formally support the proposal.

The five unitary proposal was developed independently and did not secure support from other councils in the East Sussex or West Sussex invitation areas and did not meet this criterion. Engagement on the proposal and its boundary changes was limited. Analysis of consultation responses found limited support for the proposal from both residents and service delivery partners across the two invitation areas: East Sussex and Brighton and Hove, and West Sussex.

Criterion 5: New unitary structures must support devolution arrangements

The modified two unitary option meets criterion 5. The Strategic Authority holds important levers for transport, housing, regeneration and economic growth across the wider area. While a reorganisation decision is still to be made in West Sussex, in the context of the Strategic Authority, the modified two

unitary would provide for two relatively more balanced partners in East Sussex and Brighton and Hove in terms of population.

Turning to the other proposals, the original two unitary proposal would retain existing authority boundaries and involve less work in the transition period. It would, however, leave a greater difference in population between East Sussex and Brighton and Hove. While I would not expect reorganisation to achieve complete equalisation of population for all new unitaries, I judge there is a clear advantage in expanding Brighton and Hove beyond its current base alongside the other advantages.

The five unitary proposal would provide a larger number of constituent councils and potentially more balanced individual representation across different places, which is a clear benefit of this proposal. It may also create more complex governance arrangements but, on balance, I felt that the five unitary proposal had some merit against this criterion.

Criterion 6: New unitary structures should enable stronger community engagement and deliver genuine opportunity for neighbourhood empowerment

The modified two unitary option meets criterion 6. Communities within this coastal corridor may benefit from direct engagement with an expanded Brighton and Hove council, which would be better placed to respond to similar coastal challenges across the area. I acknowledge concerns from affected communities about their sense of local identity. But I am clear that, while appreciating the concerns expressed, strong opposition does not mean that effective arrangements cannot be established; rather it increases the importance of establishing them in an effective and meaningful manner.

I consider that the evidence does not explain in comparable detail how the transferred communities would be integrated or how their identity and influence would be protected. I would like more detail to be provided on how communities will be integrated into an expanded Brighton and Hove and how their local identities will be valued and embraced as part of the representations made during the ‘minded to’ process.

Turning to the other proposals, the original two unitary proposal would create an East Sussex authority covering coastal, rural and urban communities. Consultation responses highlighted a risk that this council could appear more remote. This is not always the case in practice, providing that the varied and diverse local identities, history and character are valued and built upon. The proposal seeks to address this through parish councils and other neighbourhood governance arrangements.

The five unitary proposal meets this criterion and places greater emphasis on smaller councils that are closer to residents, using existing town and parish councils, neighbourhood charters and local access points.

It is important to note that the English Devolution and Community Empowerment Act 2026 requires all councils in England to make appropriate arrangements for effective neighbourhood governance in neighbourhood areas, with the Secretary of State able to make further provisions on those arrangements through regulations. Local government reorganisation provides an opportunity to embed this approach from the outset. Effective neighbourhood governance can help ensure that, within larger unitary structures, communities retain a strong local voice, are able to influence decisions affecting their area, and see their distinct identities and priorities reflected in how the new councils operate. We will publish a Neighbourhood Governance Framework later this year, which will provide new councils with some high-level principles to consider.

Boundary change justification

The published guidance states that existing district areas should ordinarily be the building blocks for proposals and that more complex boundary changes require a strong public services and financial sustainability related justification.

Following careful consideration, in my view, the boundary change required for the selected option is justified.

In my judgement, the principal justification for the boundary change comes from the public service benefits this would provide. This includes the potential for housing, planning, transport, investment and growth, and statutory public services along the coastal corridor to be coordinated within one authority, offering the potential to improve service coherence, access and accountability across communities with identified connections to Brighton and Hove. Following consideration of the representations made, I have decided to omit Falmer parish from an expanded Brighton and Hove based on its rural identity, to reduce the complexity associated with implementing the modification and having considered the representations made. I recognise that there is a residual impact on East Sussex resulting from the boundary change. However, I am confident that the new East Sussex council will also be able to plan and deliver services in a coherent manner that reflects the diverse nature of the communities that it will serve across rural, coastal and urban areas.

I have considered whether the boundary changes could disproportionately affect residents aged 65 and over in the remaining East Sussex area given the relatively older population. Our modelling indicates marginal improvements in financial sustainability compared with the existing county council, which will then provide a better platform for sustainable public service delivery, while bringing housing, public health and adult social care together offers opportunities to better coordinate support and public services around all resident's needs, including older residents. These benefits do not remove the transition risks, but I have confidence that the funding and leadership support described above provides a basis for managing these transition risks, and I would expect that the new authorities put in place specific monitoring of the effects on all residents, including older residents, as they move to implement decisions.

These place-based and strategic benefits lead me to judge that public service delivery will be improved over the long term. In turn, I am confident that stronger public service delivery also has the potential to improve financial sustainability over the longer term through more efficient services, better outcomes for residents, and reduced demand and expenditure overall.

I recognise that, in the short term, the modification creates additional transition challenges for adult social care, children’s services, SEND, safeguarding and established partnerships. As I have set out above, under criterion 3, I also consider that these short-term risks can be effectively managed through the funding and support packages available, which underpins the strength of the overall justification in relation to public services. I consider that the long-term benefits that flow from enabling housing, regeneration, transport, public realm and local services issues to be considered more coherently by councils that represent communities that already function together outweigh the short-term transition risks.

The assessed financial sustainability benefits of the boundary change, as set out under criterion 2, begin with a marginal but positive improvement in the sustainability assessment. Beyond that marginal gain, bringing housing, planning, transport and investment along the coastal corridor within one authority offers greater potential to support economic and housing growth and, in turn, strengthen the tax base over time. As set out above, aligning public services more closely with connected communities also offers the potential for better targeted and more efficient services, improved outcomes and reduced demand and expenditure in the long term. I have weighed these benefits against the additional

implementation costs, the risks of dividing services, the effects on the remaining East Sussex area and the contrary evidence. I recognise that this is a finely balanced judgement and that the risks will require careful management through the transition and governance arrangements described above. Nevertheless, I judge that the marginal sustainability gain, together with the further potential to strengthen the tax base through economic and housing growth and to reduce costs through more efficient public services, outweighs the additional short-term costs and transition risks. Taken together, these financial sustainability and public service benefits provide the strong justification required for the boundary change.

Conclusion

For the reasons set out above and considering the options' performance against the criteria in the round, I am currently minded to proceed with a modified two unitary option. The factors that I currently regard as weighing particularly strongly are the functional economic, travel and service links between Brighton and Hove and the four transferred wards (criterion 1); the opportunity to bring planning, housing, regeneration, transport and local public services within one authority across that coastal area (criteria 1 and 3); and the broader population and planning footprint available to Brighton and Hove (criterion 2). I have weighed those advantages against the more complete evidence on efficiencies and lower implementation risk of the original two unitary option, the additional cost and ward-level disaggregation required by the modification, the effects on residual East Sussex, which I judge to remain of sufficient scale and resilience to absorb the boundary change, representations made by local partners, and the strength of local representation to the modified two unitary option.

I have given greater weight to the modified option's better fit with the coastal communities' functional urban area and geography and its wider tax and planning base, which offer greater long-term potential for coordinated growth, housing and local services. I have not selected the five unitary proposal because it does not meet criteria 2, 3 and 4. It would create less resilient councils, carry substantially greater implementation and service risks, and was developed without support from other councils in the area.

Status of this provisional view

This letter does not constitute a final decision to implement this or any other proposal.

The conclusions set out above represent my current provisional view, reached following consideration of the relevant material. Before reaching a final decision, I will consider all representations received in response to this letter together with any other relevant material.

I remain open to reaching a different conclusion following that consideration, including modifying the provisionally preferred proposal further, deciding to implement a different proposal, or deciding not to implement any proposal.

Invitation for representations

Relevant councils and other interested parties will be able to make representations on the provisional conclusions and reasoning set out in this letter. This representation period will be for a minimum of three weeks. I will confirm the exact timings shortly.

Representations should, where possible, address the provisional conclusions and any specific requests for information identified in this letter. I am grateful for the time already given to prepare and submit proposals, views and supporting evidence. There is no need to reproduce material submitted previously or repeat points that have already been made: that material will remain available to me when reaching the final decision.

The previous decision

I have today decided to withdraw the decision announced on 16 July 2026 concerning local government reorganisation in East Sussex and Brighton and Hove.

I am considering the proposals afresh and will reach a new final decision after considering the representations invited by this letter and any other relevant matters.

Statutory process

The Local Government and Public Involvement in Health Act 2007 provides the statutory framework for local government structural change. The statutory process permits the Secretary of State to implement a proposal with or without modification following the required consultation.

If, following the further consideration described in this letter, the Secretary of State decides to implement a proposal, the structural changes would need to be provided for in a structural changes order under section 7 of the 2007 Act, subject to the applicable Parliamentary procedure.

This letter does not itself establish any new council, alter any existing local government boundary or otherwise implement structural change.

Capacity funding and other matters

I recognise that councils have already incurred costs associated with preparing for local government reorganisation and have committed significant time, resource and leadership to this work.

I am pleased to confirm that East Sussex and Brighton and Hove will be paid 50% of the £900,000 per new unitary transition support funding. This is equal to £900,000. Grants will be paid in November to the previously confirmed recipient authorities.

When final decisions are made, we will pay the balance of the £900,000 transition support per each new unitary, taking account of funding already paid to its area, as well as £150,000 of supplementary funding per new unitary for Leadership Capacity and Continuity in Children's Services, Adult Social Care and Public Health.

We are setting out further detail in the Written Ministerial Statement on city status and ceremonial matters, and the transition from the committee system.

I am copying this letter to your Chief Executives, MPs, the chair of the Sussex and Brighton Strategic Authority and the Sussex Police and Crime Commissioner.

Yours sincerely,



JIM MCMAHON OBE MP

Minister for Local Government, Devolution and Regional Growth